

		Respondents demur to the cross-petition on the ground it fails to “properly segregate Trust and Probate matters in violation of the Court’s Order.” They argue because the community properties are trust properties and not part of the probate estate, the claim for recovery of community property can only be brought as a trust claim. They also argue Family Code section 1101(b) permits an accounting in marital property disputes but does not provide grounds for an independent cause of action. Even presuming such arguments could support a demurrer, they do not stand at this pleading stage. Family Code section 1101(b) reads, in full: “A court may order an accounting of the property and obligations of the parties to a marriage and may determine the rights of ownership in, the beneficial enjoyment of, or access to, community property, and the classification of all property of the parties to a marriage.” It does not include a limitation on the type of action in which an accounting can be sought. Further, Family Code section 1101(c) authorizes a court to order “that the title of community property held in some other title form shall be reformed to reflect its community character.” As was the case with subsection (b), subsection (c) gives this court power to reform the title of the properties at issue in this proceeding. The accounting claim is sufficiently stated at this pleading stage and the demurrer on the ground that the petition fails to properly segregate trust and probate matters is OVERRULED. Petitioner is ordered to serve notice of ruling on this Demurrer.
6	Torres – Trust; 30-2025-01515898	Motion for Protective Order Petitioner Melanie Martinez’s Emergency Motion for Protective Order Prohibiting Dissipation of Trust Assets Pending Hearing on First Amended Petition (ROA 11) is DENIED.

This action arises out of the Mary L. Torres Living Trust (Trust). Petitioner is a daughter of the settlor of the Trust, Mary L. Torres (Decedent). Petitioner was named as a beneficiary in the original iteration of the Trust but was removed as a beneficiary in the Third Amendment. Petitioner alleges the Third Amendment was executed when Decedent lacked capacity and was the result of undue influence by Bridget Martinsen (Martinsen), also a daughter of Decedent. Based on her allegations, Petitioner filed the initiating petition seeking to invalidate the Third Amendment. The petition also alleges Elder Abuse and requests an order prohibiting Martinsen and Alexis T. Harris, a co-trustee of the Trust, from using Trust assets to defend against the claims. (Nathan Doorneweerd (Doorneweerd) is also a co-trustee of the Trust. Martinsen is not a trustee.)

By the motion before the court this day, Martinez seeks an order prohibiting Harris and Martinsen from “dissipating, distributing, or expending assets” of the Trust to defend this litigation pending a hearing on the petition.

A trust “constitutes a contract between the trustor and the trustee.” (*Key v. Tyler* (2019) 34 Cal.App.5th 505, 540.) “It is not the province of the court to alter a contract by construction or to make a new contract for the parties; its duty is confined to the interpretation of the one which they have made for themselves, and, in the absence of any ground for denying enforcement, to enforcing or giving effect to the contract as made, that is, to enforce or give effect to the contract as made without regard to its wisdom or folly, to the apparent unreasonableness of the terms, or to the fact that the rights of the parties are not carefully guarded, as the court cannot supply material stipulations or read into the contract words which it does not contain so as to change the meaning of words contained in the contract.” (*In re Estate of Bodger* (1955) 130 Cal.App.2d 416, 425.)

Here, the Third Amendment specifically allows the trustees to “defend, at the expense of the trust estate, any contest or other attack of any nature on this trust or any of its provisions, on the Settlor’s intent, on the Trustee, without regard to outcome or benefit to the trust.” Because the Trust specifically allows the trustees

		to use funds to defend against attacks on the Trust, the motion is DENIED as to use of Trust assets by the co-trustees Harris and Doorneweerd to defend Petitioner's attempt to invalidate the Third Amendment. The parties should be prepared to discuss, however, any possible use of Trust funds to defend Harris on the Elder Abuse claim. Respondents are ORDERED to give notice.
7	Koenig – Trust; 30-2024-01414937	Motion to Deem Vexatious Before the court is Trustee Tammie Harding's motion to declare Petitioner Krista Koenig (Koenig) a "vexatious litigant" under Code of Civil Procedure section 391. (ROA 418.) The motion also requests that the court order Koenig to furnish a security under Code of Civil Procedure section 391.1 and that the court grant a prefiling order against Koenig under Code of Civil Procedure section 391.7. The motion to declare Koenig a vexatious litigant and the requests for a prefiling order and an order requiring a security are all DENIED without prejudice. I. Request for Judicial Notice The court GRANTS Koenig's request for judicial notice as to requests 1-17. The request is granted only as to the existence of the identified documents but not for the truth of any matter asserted therein. (Evid. Code § 452 (d), 453; see <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482 [judicial notice cannot be taken of truth of matters asserted in court records].). The court also judicially notices ROAs 63, 121, 127, 132, 189, 213, 234, 260, 374, and 387 Minute Order 12/02/2025 on its own motion. (Evid. Code § 452(d).) II. Motion to Declare Koenig a Vexatious Litigant Code of Civil Procedure section 391(b)(3) defines a vexatious litigant as someone who "while acting in propria persona, repeatedly files unmeritorious motions,